

30-Minute Rest Break

The HOS regulations require a 30-minute consecutive break from driving after driving for 8 hours. The 30-minute break is required after 8 cumulative, not consecutive, driving hours. The 30-minute break required by [§ 395.3\(a\)\(3\)\(ii\)](#) may be taken either on duty, off duty, or in the sleeper berth.

Many CMV drivers interrupt their driving time during normal business operations to complete tasks, such as loading or unloading a truck, completing paperwork, or stopping for fuel. These interruptions can be used to satisfy the 30-minute break from driving, if consecutive. For example, a driver could take 15 minutes of on-duty not driving time plus 15 minutes of off-duty time to satisfy his or her 30-minute requirement, as long as those two periods are consecutive. Short, non-consecutive periods cannot be combined to reach 30 minutes of non-driving time.

The 30-minute break does not increase the maximum driving time during the work shift, or allow driving after the 14th hour from the beginning of the work shift. The 30-minute break is explained in greater detail throughout this document.

The 30-minute interruption of driving time provision is not applicable to drivers who qualify for either of the “short haul operations” exceptions outlined in [§ 395.1\(e\)\(1\) or \(2\)](#). See pages 12–13 for a description of the short haul exceptions and to determine if either exception applies to you.

60/70-Hour On-Duty Limit

The 60/70-hour on-duty limit is based on a 7- or 8-day period, depending on your motor carrier's operation, starting at the time specified by your motor carrier for the start of a 24-hour period. It applies to property-carrying CMVs, and is in addition to the other limits previously explained. It is total on-duty time, not just driving time. Once you reach the limit, you can do other work, but you are not permitted to drive.

This limit is sometimes thought of as a “weekly” limit, but is not based on a “set” week, such as Sunday through Saturday. The limit is based on a “rolling” or “floating” 7- or 8-day period. The oldest day's hours drop off at the end of each day when you calculate the total on-duty time for the past 7 or 8 days. For example, if you operate on a 70-hour/8-day schedule, the current day would be the newest day of your 8-day period and the hours you worked 9 days ago would drop out of the calculation. This regulation is found in [§ 395.3\(b\)](#).

EXAMPLE: In the table below, you have accumulated a total of 67 on-duty (driving and on-duty) hours in Days 1–8. In this example, you are operating on the 70-hour/8-day rule, and therefore are in compliance with the rules at this point as you have only worked 67 hours in the 70-hour period. Once you reach the 70-hour mark in an 8-day period, you cannot drive until you have taken enough off-duty hours to legally operate again.

In this particular example when you reach the 9th day of the cycle (the second Monday) the hours from Day 1 of the cycle (the first Sunday) would drop off and you would then calculate your hours for Days 2–9 (Monday–Monday). Since you were on duty for 6 hours on the second Monday, this totals 73 hours for the prior 8 days and you could be in violation if you drove past the 70-hour mark during the last 3 hours over 70.

On Day 10 of the cycle you do not accumulate any on-duty or driving hours, which brings your total for the last 8 days (Days 3–10) to 63 total hours. You are in compliance since you worked fewer than 70 hours in the previous 8-day period.

These same principles apply for the 60-hour/7-day HOS rule. Additionally, any time you take 34 consecutive hours off duty, this resets your “weekly” cycle of either 60/7 or 70/8 back to zero total hours accumulated. Violations of the 60/7 or 70/8 hour rules can only occur if you drive a CMV past these limits as you can remain on-duty not driving.

70-hour/8-day rule: Calculating the rolling 8-day total

#	Day	Hours
1	Sunday	0
2	Monday	10
3	Tuesday	8.5
4	Wednesday	12.5
5	Thursday	9
6	Friday	10
7	Saturday	12
8	Sunday	5
9	Monday	6
10	Tuesday	0



8-day total = 67 hours (Days 1–8)

8-day total = 73 hours (Days 2–9)

8-day total = 63 hours (Days 3–10)

You are required to follow one of these two limits:

1. If your company does not operate vehicles every day of the week, you are not allowed to drive a CMV after you've been on duty **60 hours during any 7-consecutive days**. Once you reach the 60-hour limit, you will not be able to drive a CMV again until you have dropped below 60 hours for a 7-consecutive-day period. You may do other work, but you cannot do any more driving until you are off duty enough days to get below the limit. Any other hours you work, whether they are for a motor carrier or someone else, must be added to the total.
2. If your company operates vehicles every day of the week, your employer may assign you to the 70-hour/8-day schedule. This means that you are not allowed to drive a CMV after you've been on duty 70 hours in any 8-consecutive days. Once you reach the 70-hour limit, you will not be able to drive again until you have dropped below 70 hours for an 8-consecutive-day period. You may do other work, but you cannot do any more driving until you get below the limit. Any other hours you work, whether they are for a motor carrier or someone else, must be added to the total.

34-Hour Restart

The HOS regulations allow property-carrying CMV drivers to “restart” their 60- or 70-hour clock calculations by taking 34 or more consecutive hours off duty or in the sleeper berth, or some combination of both. These regulations are found in [§§395.3\(c\)\(1\) and \(c\)\(2\)](#). After you have taken at least 34 consecutive hours off duty, you have the full 60 or 70 hours available again. The use of a “valid” 34-hour restart resets a driver’s “weekly” hours back to zero. Use of the 34-hour restart is optional; it is not mandatory.

EXAMPLE: If you follow the 70-hour/8-day limit and work 14 hours per day for 5 days in a row, you will have been on duty for 70 hours. You would not be able to drive again until you drop below 70 hours worked in an 8-day period. However, if your company allows you to use the 34-hour restart provision, you would have driving time available immediately after 34 consecutive hours off duty. You would then begin a new period of 8 consecutive days and have 70 hours available.

WHAT IS THE ADVERSE DRIVING CONDITIONS EXCEPTION?



If unexpected adverse driving conditions slow you down, you may drive up to 2 additional hours to complete what could have been driven in normal conditions. This means you could drive for up to 13 hours, which is 2 hours more than allowed under normal conditions. Adverse driving conditions mean things that you could not anticipate, like a highway blocked by a crash or the sudden appearance of fog. Adverse driving conditions do not include situations such as congested traffic during typical “rush hour” periods.

The adverse driving condition exception also allows an extension of the 14-hour “driving window” by up to 2 hours, consistent with the 2-hour extension of driving time permitted. This extension does not, however, increase any available driving time limits beyond the current 60/7 and 70/8 day limits in [§395.3\(b\)](#).

The adverse driving conditions definition covers conditions that are unknown, or could not reasonably be known, to the driver immediately before the start of the duty day or before resuming driving after a qualifying sleeper berth rest break, or to the motor carrier immediately before dispatching the driver. Drivers using an electronic logging device (ELD) are required by [§395.28\(c\)](#) to annotate the adverse driving conditions on their record of duty status (RODS), and include details about the condition. Drivers using paper logs or alternative logging systems are encouraged to similarly note when they experience adverse driving conditions.

This regulation is found in [§395.1\(b\)\(1\)](#), and the definition of “adverse driving conditions” is found in [§395.2](#).

WHAT IS THE CDL SHORT-HAUL EXCEPTION?

The short-haul exception for drivers operating a CMV requiring a commercial driver’s license (CDL) is found in [§395.1\(e\)\(1\)](#). Under this exception, a driver does not have to comply with the requirements of [§§395.8](#) or [395.11](#). To qualify for the exception a driver must:

1. Return to the normal work reporting location and be released from work within 14 consecutive hours;
2. Operate within a 150 air-mile radius (172.6 statute miles) of the normal work reporting location; and
3. Have at least 10 consecutive hours off duty separating each 14 hours on duty. Drivers utilizing the short-haul exception continue to be limited to 11 hours of driving time.

The short-haul exception in [§395.1\(e\)\(1\)](#) allows a driver to use a time record in place of an electronic or paper RODS, provided the specific rule provisions are met. The time records must include the time the driver reports for duty each day, total number of hours the driver is on duty for each day, and the time the driver is released each day. If the individual cannot meet the terms of the exception (e.g., the driver goes beyond the distance limitation or works too many hours), the driver must complete a RODS for that day as soon as the exception no longer applies.

If the driver is required to complete a RODS 8 or fewer days out of the last 30 days, the driver can use a paper RODS for the day. If the driver is required to complete a RODS more than 8 days out of the last 30 days, the driver must use an ELD for the day. Federal ELD regulations are covered in a later section of this document.

When a property-carrying CMV driver is operating under the short-haul exception in [§ 395.1\(e\)\(1\)](#), the driver is also excepted from having to take the required 30-minute break from driving time in ([§ 395.3\(a\)\(3\)\(ii\)](#)).

To summarize, to be able to use the short-haul exception, the property-carrying CMV driver must:

- Operate within a 150 air-miles radius;
- Not exceed a maximum duty period of 14 hours;
- Start and end his/her shift in the same location;
- Have at least 10 hours off between shifts.

The motor carrier that employs the driver must maintain and retain for a period of 6 months accurate and true time records showing:

- The time the driver reports for duty each day;
- The total number of hours the driver is on duty each day;
- The time the driver is released from duty each day; and
- The total time for the preceding 7 days in accordance with [§ 395.8\(j\)\(2\)](#) for drivers used for the first time or intermittently.

WHAT IS THE NON-CDL SHORT-HAUL EXCEPTION?

If you drive short distances in a property-carrying CMV that does not require a CDL, you might be able to use the non-CDL short-haul exception if you:

- Drive a truck that is a CMV that does not require a CDL; and
- Work within a 150 air-mile radius of your normal work reporting location and return to that location.

To qualify for the non-CDL short-haul exception:

- You must not drive past the 14th hour after coming on duty 5 days in any period of 7 consecutive days; and
- You must not drive past the 16th hour after coming on duty 2 days in any period of 7 consecutive days.

Under this exception you are not required to keep a log book, but your company must keep accurate and true time records for 6 months showing:

1. The time the driver reports for duty each day;
2. The total number of hours the driver is on duty each day;
3. The time the driver is released from duty each day; and
4. The total time for the preceding 7 days in accordance with [§ 395.8\(j\)\(2\)](#) for drivers used for the first time or intermittently.

If you come under this exception, you are not eligible for the [§ 395.1\(e\)\(1\)](#) short-haul exception, 16-hour short-haul exception ([§ 395.1\(o\)](#)), or the split sleeper berth provision ([§ 395.1\(g\)](#)). If you qualify for this exception, you are exempt from the requirements of [§§ 395.3\(a\)\(2\)](#), [395.8](#), and [395.11](#). This regulation is found in [§ 395.1\(e\)\(2\)](#).

WHAT IS THE 16-HOUR SHORT-HAUL EXCEPTION?

If you are a property-carrying CMV driver and usually come back to your work-reporting location and go home at the end of your workday, you might be able to use the 16-hour short-haul exception. This exception allows you to extend the 14-consecutive-hour driving window to 16 hours once every 7 consecutive days.

In order to use this exception, you must do the following:

- You must return to your work reporting location that day, as well as for your last 5 duty tours.
- You must be released from duty within 16 hours after coming on duty.
- You may use this exception only once every 7 consecutive days (unless you took 34 consecutive hours off to restart a 7/8-day period).

You are ineligible to use this exception if you use the “Non-CDL Short Haul Exception” explained earlier.

This regulation is found in [§395.1\(o\)](#).

WHAT IS A “DRIVER’S DAILY LOG” AND ELECTRONIC LOGGING DEVICE (ELD)?

The tracking of a driver’s HOS limits is normally accomplished using an electronic logging device (ELD). This can also be done in written form if your time is not required to be recorded electronically. Most motor carriers and drivers who are required to maintain RODS under [§395.8\(a\)](#) need to use an ELD to record their HOS. The rule applies to CMV operators, and to Canadian- and Mexican-domiciled drivers operating in the U.S., unless they qualify for an exception to the rule. For more information about ELDs, visit <https://eld.fmcsa.dot.gov>.



WHAT MUST THE RECORD OF DUTY STATUS INCLUDE?

RODS, or a log, must include a 24-hour graph grid, which is shown in the regulations, and must include the following information on each page:

The diagram shows a "DRIVER'S DAILY LOG" form with the following sections and annotations:

- Top Section:**
 - Date:** (MONTH) (DAY) YEAR
 - Total miles driving today:** (TOTAL MILES DRIVING TODAY)
 - Truck or tractor and trailer number:** VEHICLE NUMBERS—(SHOW EACH UNIT)
 - U.S. DEPARTMENT OF TRANSPORTATION**
 - DRIVER'S DAILY LOG (ONE CALENDAR DAY — 24 HOURS)**
 - ORIGINAL — Submit to carrier within 13 days**
 - DUPLICATE — Driver retains possession for eight days**
- Signature and Certification Section:**
 - Name of carrier:** (NAME OF CARRIER OR CARRIERS)
 - Main office address:** (MAIN OFFICE ADDRESS)
 - Driver's signature/certification:** (DRIVER'S SIGNATURE IN FULL)
 - Name of co-driver:** (NAME OF CO-DRIVER)
 - Total hours:** TOTAL HOURS
- 24-hour period starting time:** A grid with columns for hours (Midnight to 23) and rows for status: Off Duty, Sleeper Berth, Driving, On Duty (Not Driving).
- Remarks Section:**
 - Remarks:** A large box for notes.
 - Pro or Shipping No.:** A line for the shipping document number or shipper/merchandise name.

- **Date.** You must write down the month, day, and year for the beginning of each 24-hour period. (Multiple consecutive days off duty may be combined on one log page, with an explanation in the "Remarks.")
- **Total miles driving today.** You must write down the total number of miles you drove during the 24-hour period.
- **Truck or tractor and trailer number.** You must write down either the vehicle number(s) assigned by your company, or the license number and licensing State for each truck (and trailer, if any) you drove during the 24-hour period.

- **Name of carrier.** You must write down the name of the motor carrier(s) you are working for. If you work for more than one carrier in a 24-hour period, you must list the times you started and finished work for each carrier.
- **Main office address.** You must write down your carrier's main office address. The city and State are sufficient.
- **Your signature.** You must certify that all of your entries are true and correct by signing your log with your legal name or name of record.
- **Name of co-driver.** You must write down the name of your co-driver if you have one.
- **Time base to be used.** You must use the time zone in effect at your home terminal. Even if you cross other time zones, record time as it is at your terminal. All drivers operating out of your home terminal must use the same starting time for the 24-hour period, as designated by your employer.
- **Remarks.** This is the area where you must list the city, town, or village, and State abbreviation when a change of duty status occurs. You should also explain any unusual circumstances or log entries that may be unclear when reviewed later, such as encountering adverse driving conditions.
- **Total hours.** You must add and write down the total hours for each duty status at the right side of the grid. The total of the entries must equal 24 hours (unless you are using one page to reflect several consecutive days off duty).
- **Shipping document number(s), or name of shipper and commodity.** For each shipment, you must write down a shipping document number (such as a shipping manifest number) or the name of the shipper and what you are hauling.

The Graph Grid

	Midnight	2	3	4	5	6	7	8	9	10	11	Noon	13	14	15	16	17	18	19	20	21	22	23
Off Duty																							
Sleeper Berth																							
Driving																							
On Duty (Not Driving)																							
REMARKS																							

Here is what your graph grid must look like. The other required information may be placed anywhere on the page outside the grid.

You must keep the grid on your log current to your last change of duty status. For example, if you are driving and an inspector stops you and asks to see your logbook, the final entry should show the time and place that you last started driving.

The grid will have the starting time and the hours marked above it. You must draw lines on the grid as follows:

- **Off Duty.** Draw a solid line between the appropriate time markers to show the periods of time you are off duty.
- **Sleeper Berth.** Draw a solid line between the appropriate time markers to show the periods of time you are resting in a sleeper berth.
- **Driving.** Draw a solid line between the appropriate time markers to show the periods of time you are behind the wheel of a CMV in operation.
- **On Duty (Not Driving).** Draw a solid line between the appropriate time markers to show the periods of time when you are on duty, but not driving a CMV. Time spent driving a non-CMV for a carrier would be included here.

The "Remarks"

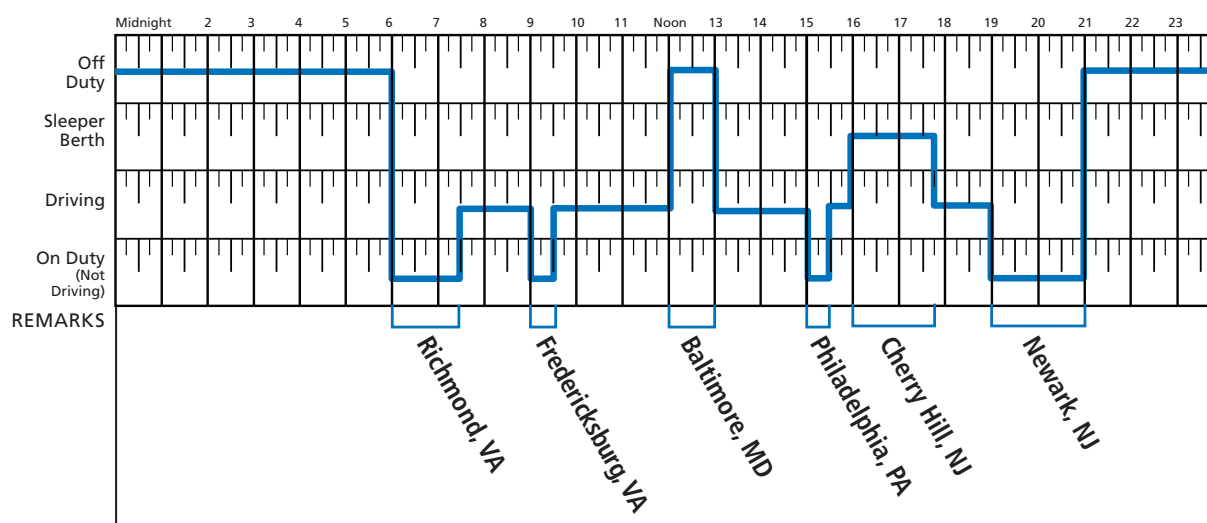
Each time you change your duty status, you must write down the name of the city, town, or village, and State abbreviation, in the Remarks section. If the change of duty status takes place at a location other than a city, town, or village, you must show one of the following:

- The highway number and the nearest milepost followed by the name of the nearest city, town, or village and State abbreviation;
- The highway number and the name of the service plaza followed by the name of the nearest city, town, or village and State abbreviation; or
- The highway numbers of the two nearest intersecting roadways followed by the name of the nearest city, town, or village, and State abbreviation.

You may write other things in the Remarks section, such as shipping information, a note about adverse driving conditions, or when you cross a State line.



A Completed Grid



In this sample log grid, a driver we'll call John Doe went from Richmond, Virginia, to Newark, New Jersey. The driver's day went like this:

- John Doe reported for work at 6:00 a.m. He helped load, checked with dispatch, and did a pre-trip inspection. This is on-duty time. John marked midnight to 6:00 a.m. as off duty, then drew a line straight down to on duty and drew a horizontal line from 6:00 a.m. to 7:30 a.m.
- After driving 1½ hours, John stopped to fuel his truck. John marked the driving time on the **driving line**. The time at the truck stop (½ hour) is marked **on duty (not driving)**.
- John then drove for 2½ hours to the Baltimore terminal where he had lunch. He again recorded his **driving** time. After lunch he recorded his lunch time as **off duty** since he had instructions from his carrier to log his lunch time as off duty and did not have any work responsibilities during this time.
- After lunch John drove for 2 more hours and stopped to make a delivery. He recorded his time again. Following the half-hour delivery stop, which he recorded as **on duty (not driving)**, he started driving again.
- After ½ hour of driving, John stopped, recorded his **driving** time, and went into the sleeper berth from 4:00 p.m. to 5:45 p.m.
- At 5:45 p.m. John recorded his **sleeper berth** time and began driving again. He reached the Newark terminal at 7:00 p.m., did a post-trip inspection, and finished his log and other paperwork.
- He went off duty at 9:00 p.m.

Notice that John was on duty past the 14th hour since he started this driving window at 6:00 a.m. There is no problem with being on duty longer than 14 hours as long as there is no CMV driving time after the 14th hour.

In the **Remarks** section, John wrote down the locations of duty status changes as follows:

- Reported for work at Richmond, VA.
- Stopped and fueled truck in Fredericksburg, VA.
- Ate lunch in Baltimore, MD.
- Made a delivery stop in Philadelphia, PA.
- Entered sleeper the berth in Cherry Hill, NJ.
- Drove to Newark, NJ, checked out, and went off duty.

A Completed Log

U.S. DEPARTMENT OF TRANSPORTATION		DRIVER'S DAILY LOG (ONE CALENDAR DAY — 24 HOURS)		ORIGINAL — Submit to carrier within 13 days DUPLICATE — Driver retains possession for eight days																			
04 09 2021		350		123, 20544																			
(MONTH) (DAY) YEAR		(TOTAL MILES DRIVING TODAY)		VEHICLE NUMBERS—(SHOW EACH UNIT)																			
John Doe's Transportation			I certify that these entries are true and correct																				
(NAME OF CARRIER OR CARRIERS)			John E. Doe																				
Washington, D.C.			(DRIVER'S SIGNATURE IN FULL)																				
(MAIN OFFICE ADDRESS)			(NAME OF CO-DRIVER)																				
					TOTAL HOURS																		
Midnight	2	3	4	5	6	7	8	9	10	11	Noon	13	14	15	16	17	18	19	20	21	22	23	
Off Duty																							10
Sleeper Berth																							1.75
Driving																							7.75
On Duty (Not Driving)																							4.5
REMARKS																							=24
Midnight 2 3 4 5 6 7 8 9 10 11 Noon 13 14 15 16 17 18 19 20 21 22 23																							
Richmond, VA Fredericksburg, VA Baltimore, MD Philadelphia, PA Cherry Hill, NJ Newark, NJ																							
Pro or Shipping No. 101601																							

After you have completed your log, the regulations allow you 13 days to get the original copy to your carrier.

You must keep a copy of your completed log for the next 7 consecutive days. The copies must be available for inspection by law enforcement officers.

Any time you work for more than one motor carrier during a 24-hour period, you must make extra copies and give a copy of your log to each motor carrier. The log must include:

- All duty time for the entire 24-hour period,
- The name of each motor carrier you worked for during the 24-hour period, and
- The beginning and finishing time, including a.m. or p.m., worked for each motor carrier.

HOURS OF SERVICE RESOURCES

To access additional HOS resources, visit FMCSA's HOS web page at <https://www.fmcsa.dot.gov/regulations/hours-of-service>.

APPENDIX A: EXCEPTIONS FROM THE HOURS OF SERVICE REGULATIONS

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
150 air-mile radius driver (Short-haul exception)	- ELD or logbook and supporting documents not required 30-minute rest break applicable to property carriers does not apply	- Report and return to work reporting location within 14 consecutive hours - Stay within 150 air-mile radius of work reporting location - Employer must keep time records showing time in, time out, and total number of hours on duty - The motor carrier that employs the driver maintains and retains (for a period of 6 months) accurate and true time records showing: - The time the driver reports for duty each day; - The total number of hours the driver is on duty each day; - The time the driver is released from duty each day; - The total time for the preceding 7 days in accordance with §395.8(j)(2) for drivers used for the first time or intermittently. - Property-carrying CMV driver must have at least 10 consecutive hours off duty separating each 14 hours on duty and cannot exceed 11 hours driving	§395.1(e)(1)
150 air-mile radius driver (Short-haul exception–non CDL driver, property-carrying)	16-hour driving windows allowed twice per 7-consecutive day period, or after any 34-hour restart - ELD or logbook and supporting documents not required 30-minute break not required	- Vehicle does not require CDL - Report and return to normal work reporting location every day - Stay within 150 air-mile radius of work reporting location - Employer must keep time records showing time in, time out, and total number of hours on duty - The motor carrier that employs the driver maintains and retains (for a period of 6 months) accurate and true time records showing: - The time the driver reports for duty each day; - The total number of hours the driver is on duty each day; - The time the driver is released from duty each day; - The total time for the preceding 7 days in accordance with §395.8(j)(2) for drivers used for the first time or intermittently. - Property-carrying non-CDL holder must not drive after the 14th hour after coming on duty for 5 days of any period of 7 consecutive days, or after the 16th hour after coming on duty for 2 days of any period of 7 consecutive days.	§395.1(e)(2)

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
Adverse driving conditions	- Up to 2 additional hours of driving time - Up to 2 additional hours "driving window"	Weather or traffic condition must be unknown, or could not reasonably be known, to a motor carrier immediately before dispatching the driver, or to a driver before driving at the start of the duty day or after a qualifying rest break as defined under the sleeper berth exception.	§ 395.1(b)(1) § 395.2
Agricultural operations	All HOS regulations	- Transporting agricultural commodities or farm supplies for agricultural purposes - Within 150 air-miles of the agricultural commodities' source, and 150 air miles from final destination if transporting livestock, or farm supplies' distribution point - During a State's declared planting and harvesting season	§ 395.1(k) § 395.2
Agricultural (Farm Vehicle Operations; 10,001 through 26,000 lbs. GVW/ GVWR)	All HOS regulations, among others	- Must be a "covered farm vehicle" as defined in § 390.5T - Driven by the owner or operator of a farm or ranch or by a family member or employee of that person - Transporting agricultural commodities, livestock, machinery, or supplies to or from the farm or ranch - Registered in a State with a license plate or some other designation of identifying it as a farm vehicle to law enforcement officials - Not for-hire - Not transporting hazardous materials requiring placarding - No limitation on distance for these lighter vehicles (see next row in table)	§ 390.5T § 390.39(a)(3)
Agricultural (Farm Vehicle Operations; 26,001 lbs. or greater GVW/GVWR)	All HOS regulations, among others	- Same conditions as a covered farm vehicle weighing between 10,001 and 26,001 lbs. - Anywhere in the vehicle's home State or extending into another State within a 150 air-mile radius (172.6 land miles) of the operator's farm or ranch	§ 390.5T § 390.39(a)(3)

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
Alaska	- Property-carrying CMVs are exempt from §§ 395.3(a) and (b) - Driving for property-carrying CMV drivers is limited to 15 hours of driving time following 10 consecutive hours off duty - The driver cannot drive after having been on duty for 20 hours or more following 10 consecutive hours off duty - The driver cannot drive after having been on duty for 70 hours in 7 consecutive days or 80 hours in 8 consecutive days, depending on the motor carrier's operations - Drivers that encounter adverse driving conditions may drive and be permitted or required to drive a CMV for the period of time needed to complete the run	Driving a CMV in Alaska	§ 395.1(h)
Construction materials and equipment	24 consecutive hours off duty restarts 60-hour/7-day or 70-hour/8-day limit	- Transporting construction and pavement materials, construction equipment, and construction maintenance vehicles. - To or from active construction site - Stay within 75 air-miles of normal work reporting location - Does not apply to vehicles placarded for hazardous materials	§ 395.1(m) § 395.2

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
Driver's record of duty status	Electronic logging device	A motor carrier may require a driver to record the driver's duty status manually rather than require the use of an ELD if the driver is operating a CMV: - In a manner requiring completion of a record of duty status on not more than 8 days within any 30-day period; - In a driveaway-towaway operation in which the vehicle being driven is part of the shipment being delivered; - In a driveaway-towaway operation in which the vehicle being transported is a motor home or a recreation vehicle trailer; or - That was manufactured before model year 2000.	§ 395.8(a)(1)(iii)(A)
Driver-salesperson	Exempt from provisions of § 395.3(b)	- Driver is employed solely by a private carrier of property that is engaged in the selling of goods, services, or use of goods and transporting those good or services - Stays within 100 miles of work reporting location - No more than half of all on-duty time spent driving - Driving time does not exceed 40 hours in any 7 consecutive days	§ 395.1(c) § 395.2
Emergency relief	All HOS regulations, among others	- Declared national, regional, State, or local emergency - Must be providing direct assistance to emergency relief	§ 390.23
Emergency driving conditions	All HOS regulations	- Can only complete the current run - Run could have reasonably been completed if there wasn't an emergency	§ 395.1(b)(2)
Federal government operated	All HOS regulations, among others	None	§ 390.3T(f)(2)

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
Fire and rescue, emergency operation (non-government)	All HOS regulations, among others	Involved in emergency and related operations	§ 390.3T(f)(5)
Ground water well drilling	24 consecutive hours off duty restarts 60-hour/7-day or 70-hour/8-day limit	Vehicle used primarily in transportation and operations of a groundwater well drilling rig	§ 395.1(l) § 395.2
Hawaii	ELD or logbook not required	Employer keeps time records showing time in, time out, and total number of hours on duty	§ 395.1(i)
Local government operated	All HOS regulations, among others	- None - Intrastate exceptions may be different. Check with State enforcement for details.	§ 390.3T(f)(2)
Movie and television production	Exempt from requirements of § 395.3(a)	- Transportation of property or passengers to or from a theatrical or television or motion picture production site - Stays within 100 air-miles of normal work reporting location - Driver may not drive more than 10 hours following 8 consecutive hours off duty - Driver may not drive for any period after having been on duty 15 hours following 8 consecutive hours off duty	§ 395.1(p)
Oilfield operations	24 consecutive hours off duty restarts the 70 hours in 8 days calculations	CMVs used exclusively in transportation of oilfield equipment and servicing field operations gas and oil industry	§ 395.1(d)(1)
Oilfield operations	Waiting time at natural gas or oil well site is recorded as off-duty time; waiting time not counted against 14-hour clock	- Specially trained drivers operating specially constructed vehicles used to service gas or oil wells - Waiting time must be shown separately on RODS	§ 395.1(d)(2)

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
Personal property occasional transportation	All HOS regulations, among others	Transportation unrelated to any commercial activity	§ 390.3T(f)(3)
Propane winter heating fuel; pipeline emergencies	All HOS regulations	Regulations must prevent a driver from responding to emergency conditions as defined in § 390.5T	§ 390.3T(f)(7)
Railroad signal employees	All HOS regulations	Provisions do not apply to a signal employee, as defined in § 395.2, who operates a CMV, is engaged in installing, repairing, or maintaining signal systems, is employed by a railroad carrier or a contractor or subcontractor to a railroad carrier, while regulated by the Federal Railroad Administration	§ 395.1(r)
Retail store deliveries	All time limits on driving, duty periods, breaks, time off	- Local deliveries from retail stores and/or catalog businesses to the ultimate consumer - Stay within 100 air-miles of normal work reporting location - Only December 10 through December 25	§ 395.1(f)
School bus—contractor-operated	All HOS regulations	Transportation of school children or school personnel from home to school and from school to home	§ 390.3T(f)(1)
School bus—government-operated	See “Local government operated” entry above		
Short-haul exception (16-hour) (CDL drivers) Also see § 395.1(e)(2) non-CDL driver entry at beginning of this table	16-hour duty period allowed once per 7-day period, or after any 34-hour restart	- Return to work reporting location that day and for last 5 duty tours - Be released from duty within 16 consecutive hours - Use once every 7 consecutive days or after a 34-hour restart - Does not apply if driver is eligible for § 395.1(e)(2) non-CDL driver exception (see above)	§ 395.1(o)
State government operated	All HOS regulations, among others	- None - Intrastate exceptions may be different. Check with State enforcement for details.	§ 390.3T(f)(2)

Category	Type of Exception	Conditions That Must Be Met	49 CFR Section
Tow truck responding to emergency	• All HOS regulations, among others	• When responding to government request for wrecked/disabled vehicles	§390.23(a)(3)
Utility service vehicles	• All HOS regulations	• Vehicle being used to repair, maintain, or deliver public utility services including electric, gas, water, sanitary sewer, telephone, television cable, or community antenna service • Includes travel to and from activity sites • Operates primarily within service area of utility's subscribers or consumers • Does not include new construction activity	§395.1(n) §395.2



Interstate Truck Driver's Guide to Hours of Service



U.S. Department of Transportation
Federal Motor Carrier Safety Administration

Contact Info:

FMCSA Information Line,
1-800-832-5660 or
hoursofservice@dot.gov